

Judgment Sheet
IN THE LAHORE HIGH COURT
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Criminal Appeal No.191 of 2016
(Imtiaz Ahmad vs. The State & another)
&

Criminal Revision No.138 of 2016
(Ghulam Sarwar vs. The State & another)

JUDGMENT

Date of hearing:	<u>23.09.2021</u>
Appellant by:	<u>Malik Amir Manzoor Awan, Advocate</u>
State by:	<u>Mr. Ansar Yasin, Deputy Prosecutor General</u>
Complainant by:	<u>Sahibzada Muhammad Nadeem Fareed, Advocate (for petitioner in Crl. Revision No.138/2016)</u>

Ali Zia Bajwa, J. This single judgment shall decide the fate of Criminal Appeal No. 191/2016 preferred by convict Imtiaz Ahmad (*hereinafter ‘appellant’*) against his conviction and sentence and Criminal Revision No.138/2016, filed by the complainant Ghulam Sarwar, for enhancement of sentence of convict/respondent No.2.

2. Appellant, who was tried by learned Additional Sessions Judge Rajanpur, in private complaint No.104/2012 titled as “Ghulam Sarwar vs. Imtiaz Ahmad” for offences under section 302, 324 and 34 of Pakistan Penal Code, 1860 (PPC), has assailed his conviction and sentence passed vide judgment dated 30.01.2016, in following terms:

- *Under section 302(b) of Pakistan Penal Code, 1860 to undergo Rigorous Imprisonment for life, for causing Qatl-i-Amd of Ghulam Nazik deceased.*

- *To make compensation of Rs. 1,00,000/- to the legal heirs of the deceased Ghulam Nazik.*
- *Benefit of section 382-B Cr.P.C. was also extended in his favor.*

3. Facts germane to decide the criminal appeal and criminal revision are that complainant got recorded FIR No.445/2011 dated 11.11.2011 for offences under section 302, 324, 337-F(iv) and 34 PPC at P.S. Fazilpur, Tehsil & District Rajanpur, regarding murder of his son Ghulam Nazik (*hereinafter 'deceased'*) and for causing injury to his son namely Shahid Hussain. Complainant, in his private complaint, narrated that on 11.11.2011 at about 12:30 a.m., he along with deceased, Shahid Hussain injured, Ghulam Rasool and Malik Farooq PWs, went to patrol his cotton crop. Appellant armed with rifle, co-accused Aftab (tried separately being juvenile) armed with pistol .12-bore and co-accused Shifa Ullah alias Shafa (declared P.O. during the trial of appellant) armed with rifle were present in the cotton crop. On seeing them deceased and Shahid Hussain injured raised lalkara on which Shifa Ullah co-accused made a straight fire shot at the right side of chest of deceased and appellant made a fire shot at the back side of head of deceased. Third fire shot was made by Aftab (Juvenile co-accused) on the calf of right leg of injured PW Shahid Hussain. Ghulam Nazik succumbed to the injuries at the spot and complainant along with injured Shahid Hussain went to police station Fazilpur but I.O. met him at *Huzoori* drainage canal and complainant got recorded his statement to him. Motive behind the occurrence was alleged to be a suspicion by accused party that Mst. Khalida, real sister of Juvenile accused Aftab Ahmad, was abducted by Ghulam Rasool P.W. and also that cousin of accused Aftab Ahmad's father namely Bashir Ahmad was murdered by Aman Ullah real uncle of deceased.

4. FIR was recorded against unknown accused persons but complainant nominated the present appellant along with his two co-accused, by contending that he had nominated these accused persons in

his complainant handed over to the Investigating officer (CW.1) but he, being in league with the accused persons, didn't name the accused persons in the FIR. During the investigation of the case, a weapon, different from the one alleged by the complainant in crime report, was recovered from the appellant. Being dissatisfied by the result of investigation and alleged omission on the part of Investigating Officer of not nominating the appellant and his co-accused in the FIR, complainant filed private complaint against three accused persons including the present appellant. After recording the cursory statements of complainant and other prosecution witnesses, private complaint was admitted for regular hearing and appellant along with his co-accused was summoned to stand trial. One of the co-accused namely Shifa Ullah absconded and he was declared P.O. and initially, appellant and co-accused Aftab Ahmad were tried jointly but after recording of some PWs, co-accused Aftab Ahmad was declared juvenile and he was tried separately.

5. To prove its case against the appellant, prosecution produced as many as 11 witnesses and one witness i.e. I.O. of FIR was examined as Court Witness. Ghulam Sarwar (PW-6) is eye-witness and complainant of the private complaint. Shahid Hussain injured (PW.7) and Ghulam Rasool (PW.8) are also eye-witnesses of the occurrence. Dr. Syed Izhar Ahmad (PW-10) is medical expert who examined the injured Shahid Hussain and also conducted the autopsy of deceased. Remaining witnesses are, more or less, formal in nature. Statement of Mushtaq Hamid SI/IO was recorded as CW-1.

6. After closing of prosecution evidence and statement of CW, statement of appellant was recorded as envisaged under section 342 Cr.P.C. In his statement, he professed his innocence by contending that all the PWs are kith & kin and they have deposed falsely against him due to previous enmity. Appellant neither appeared as a witness as envisaged under section 340(2) Cr.P.C. nor produced any evidence, oral or

documentary, in his defense. At the conclusion of trial, appellant was convicted and sentenced as mentioned above.

7. Arguments heard. Record perused.

8. Perusal of the record transpires that the prosecution case mainly hinges upon ocular account, motive, medical evidence and recovery.

9. Ocular account consists of Complainant PW.6, injured Shahid Hussain PW.7 and Ghulam Rasool PW.8. Perusal of the record reveals that contents of complaint filed by the complainant and that of the FIR are at variance. It is straightaway observed by this Court that no one was nominated by the complainant in crime report despite the fact that appellant and other accused persons were very well known to the complainant.

10. Although, complainant tried to make up for this deficiency through supplementary statement and contended that he got recorded names of accused in crime report too but investigating officer, with mala fide intention and being in league with the accused persons, did not mention their names therein. This contention does not attract to a prudent mind, as if investigating officer was that much aligned with the appellant side then why would he record the supplementary statement of complainant, having names of accused persons, on the same day and also record statements of the other prosecution witnesses in line with that supplementary statement. In the crime report complainant mentioned the features of unknown assailants in detail therefore, supplementary statement got recorded by the complainant, seems to be result of deliberation and consultation, especially when it is an admitted fact that all the accused persons nominated through supplementary statement were previously very well known to complainant and other prosecution witnesses. This fact alone creates a serious dent in the prosecution story and nomination of accused subsequently through supplementary statement seems result of after-thought and concoction. Where crime report is registered against the unknown accused person and subsequently, those accused are nominated through supplementary

statement, who are already well-known to complainant and prosecution witnesses, it can be considered a dishonest improvement and consequently not worthy of any credence. Respectful reliance can be placed on the pronouncement of prestigious apex Court of the Country in Akhtar Ali's Case¹, wherein, after referring a chain of judgment², it was authoritatively held that:

“It is, therefore, established that the name of the appellants along with their acquitted co-convict did not appear in the F.I.R., therefore, it is an improvement made by the complainant in the supplementary statement, therefore, the statement of the complainant involving the appellants in the case is obviously false and no reliance can be placed therein in view of all attending circumstances available on the record and learned High Court was, therefore, not justified to uphold the sentence of the appellants.

Same view can be further strengthened by the Kashif Ali's case³, wherein apex Court after considering number of judgments⁴ held that:

“15. ... that supplementary statement recorded subsequently to the F.I.R can be viewed as improvements made to the witness's statement...”

11. As far as nomination of accused persons in statements of witnesses under section 161 Cr.P.C. is concerned, perusal of record reveals that although PWs have nominated the accused persons in their statements under section 161 Cr.P.C. but statement of PW.7 Shahid Hussain, as per his own version, was recorded on 17.11.2011, while as per the version of I.O./CW.1, statements of all the PWs were recorded on the same date i.e. 11.11.2011. This aspect smashes the credibility of statements of PWs and from recording of these statements after the supplementary statement of complainant, it can easily be inferred that statements of PWs were recorded after due deliberation and nomination of appellant and other co-accused was

¹ AKHTAR ALI's Case and others v. THE STATE - 2008 SCMR 6

² Muhammad Rafique's case 1994 SCMR 1169, Qalab Ali's case 2005 SCMR 1857, Rahab's case 2001 SCMR 1745, Rahab's case 2002 SCMR 233 and Khalid Javed's case 2003 SCMR 1419.

³ Kashif Ali v. The Judge, Anti-terrorism, Court NO.II, Lahore and others, (PLD 2016 SC 951)

⁴ Syed Saeed Muhammad Shah v. The State (1993 SCMR 550), Amir Zaman v. Mehboob and others (1998 SCMR 685), Zulfiqar Hussain v. The State (2011 SCMR 379), Abid Ali v. The State (2011 SCMR 161) and Tahir Abbas v. The State (2003 SCMR 426),

result of forethought. Respectful reliance is placed upon the decision of august Supreme Court of Pakistan in Muhammad Rafique and others case⁵.

Relevant extract is reproduced hereunder:

“26. ...Their statements are in line with the supplementary statement of the complainant. The record shows that their statements under section 161, Cr.P.C. were recorded after the recording of supplementary statement of the complainant, therefore, the possibility of consultation and deliberation before recording statements cannot be ruled out...”

12. It is also pertinent to mention that grievance of complainant qua non-mentioning the names of accused had arisen on 11.11.2011 but he fell into a deep slumber and opted to file private complaint to get his alleged grievance redressed on 14.03.2012 i.e. after more than four months of alleged mala fide act of I.O. and that too, only after I.O. has opined that the appellant did not commit the said occurrence in the manner as narrated by the complainant in the crime report. It is also perceptible that complainant did not bring factum of dishonest investigation in the notice of police high ups rather remained numb for months. Neither it is mentioned in the complaint nor was it brought on the record through any evidence that complainant made slightest of efforts for redressal of his grievance against such grave alleged illegality and dishonesty of police, which seems unnatural and unusual in a case of murder. Registration of crime report against the unknown accused persons and subsequently nominating the appellant and other co-accused through supplementary statement and in private complaint, who are previously well known to the complainant and prosecution witnesses, jolted the entire edifice of prosecution case.

13. Complainant alleged, in his complaint and while deposing before the court, previous enmity *inter se* the parties to be the motive resulted in the occurrence in question. Appellant and co-accused had no direct grudge against the complainant, injured or deceased. Astonishingly appellant and other co-accused did not target Ghulam Rasool PW.8 against

⁵ Muhammad Rafique and others v. The State and others, (2010 S C M R 385)

whom actual rancor existed despite of the fact that he was present at the place of occurrence empty handed. Even otherwise, motive is always considered as double edge weapon, at one hand if it gives a reason or motivation to the accused to commit the crime, on the other hand, it equally provides impetus to the complainant to falsely implicate the accused in the case. Guidance is sought from the decision of august Supreme Court of Pakistan in Muhammad Ashraf alias Acchu's case⁶. Motive alone, as a corroborative circumstance to support the ocular evidence cannot be relied upon to convict an accused when the ocular testimony is neither credible nor worthy of reliance. It is an established proposition of law that motive is not substantive piece of evidence rather same is merely a circumstance, which might lead the accused to commit the occurrence. Reliance in this regard can be placed on Akbar Ali's Case⁷.

“It is also a settled law that the existence of motive/enmity is neither a substantive nor a direct evidence. It is not corroborative piece of evidence either. The motive/enmity is only a circumstance which may lead to the commission of an offence. It is a starting point for committing a crime but under no circumstances it can be taken as an evidence. Further, motive/enmity is a double-edged weapon. Offence may be perpetrated because of the existence of the motive/enmity and it can also be a basis of a false charge.”

14. Although it is vehemently argued by the learned counsel for the complainant that one of the prosecution witnesses i.e. Shahid Hussain PW.7, received injuries during the alleged occurrence, which proved his presence at the spot but it is trite law that although, injuries on the person of a witness establish his presence at the spot but his statement cannot be taken as a gospel truth. Reference, if required, can be made to the decision of Amin Ali and another's case⁸, wherein it was categorically held by august Supreme Court of Pakistan that:

⁶ Muhammad Ashraf alias Acchu v. The State, (2019 SCMR 652)

⁷ AKBAR ALI v. THE STATE - 2007 SCMR 486

⁸ Amin Ali and another v. The State, (2011 SCMR 323)

“12. Certainly, the presence of the injured witnesses cannot be doubted at the place of incident, but the question is as to whether they are truthful witnesses or otherwise, because merely the injuries on the persons of P.Ws. would not stamp them truthful witnesses...”

When there is contradiction between the statements of injured witness and I.O. of this case, regarding date of recording of his statement, it can safely be inferred that this witness got recorded his statement under section 161 Cr.P.C. after due deliberation and nomination of the appellant and other co-accused seems a postscript.

15. As far as medical evidence is concerned, although perusal of Exh.PH i.e. Postmortem Examination Report transpires that injury attributed to the appellant is present on the person of deceased but it is settled law that medical evidence is just a confirmatory piece of evidence and it can only declare seat and nature of injury, kind of weapon used for causing such injury, probable duration between injury and death but it cannot identify the assailant who caused such injury. Reference can be made to the decision of august Supreme Court of Pakistan in Sajjan Solangi case⁹, wherein said principle was elaborated as follows:

“4. The medical evidence at the most could be a supporting evidence to the ocular account and by itself cannot identify the assailant but as already discussed in this case there is no ocular account, hence medical evidence is also not helpful to the prosecution.”

16. Although .12-bore pistol was recovered on the disclosure and pointing out of appellant on 21.12.2011 from his house but there is no report of forensic analysis containing opinion of ballistic expert to the effect that cartridge of .12 bore, taken into possession from the place of occurrence, was fired from the pistol allegedly recovered on the pointing out of the appellant. Alleged recovery of .12 bore pistol is also of no avail to prosecution case as recovered weapon is different from the weapon, which was shown to be carried by the appellant in the crime report at the time of occurrence.

⁹ Sajjan Solangi v. The State, (2019 SCMR 872)

17. It is settled principle of criminal jurisprudence that in order to make out a case of an accused for conviction, prosecution should prove its case beyond reasonable doubt. Accused remains innocent until proven guilty by the prosecution “beyond reasonable doubt”. The law does not require an accused person to prove his innocence or produce any evidence at all to negate the prosecution version. Presumption of innocence attached with an accused alone is sufficient to acquit him, unless the court is satisfied beyond a reasonable doubt qua the guilt of the accused, after a watchful and impartial consideration of all the evidence available on the record. In Muhammad Asghar alias Nannah and another case¹⁰, apex Court of the Country held that the concept of innocent until proven guilty and proof of guilt beyond reasonable doubt are interlinked and it is the prime duty of prosecution to prove its case against the accused persons and the onus never shifts except the cases falling under Article 121 of Qanun-e-Shahadat Order, 1984.

18. Proof beyond *reasonable doubt* means that prosecution should produce such evidence that no prudent mind would doubt about the guilt of the accused. A reasonable doubt may be described as a doubt that would make a prudent mind hesitant to act. Proof beyond a reasonable doubt, therefore, must be a proof of such a convincing character that a reasonable person would not be reluctant to rely and act upon it to convict an accused. However, it is to be understood that proof beyond a reasonable doubt does not mean proof beyond all possible doubts. Connotation of term *“reasonable doubt”* was elucidated in Muhammad Asghar’s Case¹¹ as infra:

6. The meaning of reasonable doubt can be arrived at by emphasizing the word "reasonable". It is not a surmise, a guess or mere conjecture (State v. Griffin, 253 Conn. 195, 206 (2000)). It is not a doubt raised by anyone simply for the sake of raising a doubt. It is such a doubt as, in serious affairs that concern any one and that such a doubt would cause reasonable men and

¹⁰ MUHAMMAD ASGHAR alias NANNAH and another v. THE STATE - 2010 SC MR 1706

¹¹ Muhammad Asghar’s Case Alias Nannah and another v. The State – 2010 SCMR 1706

women to hesitate to act upon it in matters of importance (State v. Morant, 242 Conn. 666, 688 (1997). It is not hesitation springing from any feelings of pity or sympathy for the accused or any other person who might be affected by the decision. It is, in other words, a real doubt, an honest doubt, a doubt that has its foundation in the evidence or lack of evidence (State v. Velasco, 253 Conn. 210, 249 (2000). It is doubt that is honestly entertained and is reasonable in light of the evidence after a fair comparison and careful examination of the entire evidence (State v. Torres, 82 Conn. App. 823, 836-37 (2004).

However, no person may be convicted for an offence unless the offence alleged to have been committed and the fact of committing such an offence by that very accused is established as independent fact beyond a reasonable doubt. Mere heinousness of crime should not sway the court to deviate from the settled principles of criminal justice system.¹²

19. When factum of nomination of appellant through supplementary statement is considered side by side with admitted previous enmity inter-se the parties, it leads to an irrefutable inference that possibility of false implication cannot be ruled out. In this case, as discussed above, nomination of accused persons seems to be an afterthought, due to previous enmity between the parties. As per above discussion, this Court is compelled to hold that prosecution theory of case as structured in the private complaint, when juxtaposed with crime report, is unbelievable and creates serious doubts qua the culpability and involvement of appellant in this case.

20. Gamut of above said discussion and re-appraisal of prosecution evidence leads the Court to the inexorable conclusion that prosecution evidence was not up to the mark to convict and sentence the appellant. Story of prosecution, as discussed above, is full of doubts regarding involvement of appellant in the occurrence in question. To extend benefit of doubt to an accused person, it is not necessary that there should be several circumstances creating doubt qua the story of prosecution, rather one reasonable doubt is sufficient to acquit an accused, not as a matter of grace but as a matter of

¹² Naveed Asghar and 2 others v. The State – PLD 2021 SC 600

right. This principle was expounded by august Supreme Court of Pakistan in Najaf Ali Shah case¹³ after considering various Judgments¹⁴, as *infra*:

“It is a well settled principle of law that for the accused to be afforded this right of the benefit of the doubt it is not necessary that there should be many circumstances creating uncertainty and if there is only one doubt, the benefit of the same must go to the petitioner”

Same view has been rendered by apex Court of the country in Ahmed Omar Sheikh and others case¹⁵ by holding that:

“32...it is settled since centuries that benefit of doubt automatically goes in favour of an accused. Even if a single circumstance create reasonable doubt in a prudent mind regarding guilt of an accused then the Accused shall be entitled to such benefit not as a matter of grace and concession but as a matter of right and such benefit must be extended to the accused person(s) by the Courts without any reservation...”

21. It is also an axiomatic principle of law that it is better to acquit a guilty person than to punish an innocent. Reliance can be placed upon the decision of august Supreme Court of Pakistan in Ayub Masih case¹⁶, wherein this principle was authoritatively elaborated in following words:

“10. ...The rule of benefit of doubt, which is described as the golden rule, is essentially a 'rule of prudence which cannot be ignored while dispensing justice in accordance with law. It is based on the maxim, “it is better that ten guilty persons be acquitted rather than one innocent person be convicted”. In simple words it means that utmost care should be taken by the Court in convicting an accused. It was held in The State v. Mushtaq Ahmed (PLD 1973 SC 418) that this rule is antithesis of haphazard approach or reaching a fitful decision in a case. It will not be out of place to mention here that this rule occupies a pivotal place in the Islamic law and is enforced rigorously in view of the saying of the Holy Prophet (P.B.U.H) that the “mistake of Qazi (Judge) in releasing a criminal is better than his mistake in punishing an innocent.” (emphasis applied)

¹³ Najaf Ali Shah case vs. The State (2021 SCMR 736)

¹⁴ Mst. Asia Bibi v. The State (PLD 2019 SC 64), Tariq Pervaiz v. The State (1998 SCMR 1345), Ayub Masih v. The State (PLD 2002 SC 1048) and Abdul Jabbar v. State (2010 SCMR 129)

¹⁵ The State through P.G. Sindh and others v. Ahmed Omar Sheikh and others, (2021 SCMR 873)

¹⁶ AYUB MASIHI v. The State, (P L D 2002 Supreme Court 1048)

Crl. Appeal No.191/2016
Crl. Revision No.138/2016

22. With these observations, I am of the considered view that prosecution has failed to prove its case against the appellant beyond reasonable doubt and appellant has made out a good case of acquittal, hence **Criminal appeal No. 191 of 2016** preferred by the appellant is **accepted** and he is acquitted of the charge by extending him benefit of doubt.

23. As far as **Criminal Revision No. 138 of 2016** filed by the complainant seeking enhancement of sentence of convict/respondent No.2 is concerned, in view of findings given above, the same is squarely devoid of any force, which is accordingly **dismissed**.

(ALI ZIA BAJWA)
JUDGE

Announced in open Court on 08-11-2021.

(ALI ZIA BAJWA)
JUDGE

Approved for reporting

JUDGE

Riaz